

Terms of Service & Privacy Policy

Draft v1.1 — White Pixel Technologies

August 11, 2026

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Application: [App Name — TBD; “Sealine” used only as an internal placeholder, not an official name] **Owning Organization:** White Pixel Technologies (WPT) **Document status:** Draft, prepared for legal review. This is not legal advice, and should not be published, linked in-app, or relied upon in production until reviewed and approved by a qualified lawyer familiar with the jurisdictions this app will operate in. **Date:** August 11, 2026 **Revision note:** v1.1 — added disclosure language on contact-matching hash-based privacy protection (Part B, Section 2) and Web client key-storage disclosure (Part B, Section 12), both surfaced during technical architecture drafting. No other content changed from v1.0 (August 10, 2026).

PART A — TERMS OF SERVICE

1. Acceptance of Terms

By creating an account or using [App Name] (“the Service”), operated by White Pixel Technologies (“WPT,” “we,” “us”), you agree to these Terms of Service (“Terms”). If you do not agree, do not use the Service.

2. Eligibility

You must be at least 16 years old to use the Service. We set this age uniformly across all regions for consistency, even though some jurisdictions (e.g., certain EU member states under GDPR, or the US under COPPA) permit a lower age with parental consent. If we learn an account belongs to someone under 16, we reserve the right to suspend or delete it.

Flag for legal review: confirm whether a uniform 16+ threshold is defensible globally, or whether jurisdiction-specific age gating is required.

3. Description of the Service

[App Name] is an end-to-end encrypted (E2EE) messaging application enabling 1:1 and group text messaging, media and voice note sharing, and related communication features across Android, iOS, and Web. Messages and media are encrypted such that WPT cannot read their content in transit or at rest, except in the limited circumstance described in Section 7 (Reporting).

4. Your Account

You register using a valid phone number, verified via a one-time code (OTP).

One account per phone number. You are responsible for maintaining control of the device(s) and phone number associated with your account.

You are responsible for all activity under your account. Notify us immediately if you suspect unauthorized access.

Logging into the Service on a new device automatically signs out any other active session (phone or Web) tied to that account, for security purposes. See our Privacy Policy for details.

5. Acceptable Use

You agree not to use the Service to:

- Violate any applicable law or regulation;
- Harass, threaten, abuse, or harm another person;
- Send spam, unsolicited bulk messages, or fraudulent content;
- Distribute content depicting child sexual abuse, exploitation, or any illegal content;

- Impersonate another person or misrepresent your affiliation;
- Attempt to interfere with, disrupt, or reverse-engineer the Service or its encryption;
- Use the Service for any commercial messaging, automated bulk communication, or business purpose not explicitly authorized by WPT.

6. User Content

You retain ownership of the messages, media, and other content you send (“User Content”).

Because the Service is end-to-end encrypted, WPT does not have routine access to the content of your messages. Messages are removed from our servers immediately upon successful delivery; undelivered messages are automatically deleted after 30 days.

The limited exception is described in Section 7.

7. Reporting & Enforcement

If you report another user or group, the most recent messages from that conversation (as they exist on your device) and related metadata (phone number, timestamps, message type) are forwarded to WPT for review. This is the only circumstance in which WPT receives message content, and it occurs only because you — the reporter — voluntarily share content already visible on your own device.

Reported content is retained for up to 30 days for review purposes and then deleted.

We may issue warnings, temporarily restrict, or permanently ban accounts found to violate these Terms. We are not obligated to disclose the outcome of a report to the reporting party or to the reported user.

Blocks and reports associated with a phone number persist even if the associated account is deleted and a new account is later created with the same number.

8. Termination

By you: You may delete your account at any time via the app. Deletion is permanent; your profile data and device-local message history are not recoverable by WPT. Other users’ existing conversation history with you is not remotely altered.

By us: We may suspend or terminate your account for violation of these Terms, at our discretion, with or without notice.

A phone number associated with a deleted account may not be used to create a new account for 48 hours.

9. Intellectual Property

The Service, including its software, design, and branding, is owned by WPT and protected by applicable intellectual property laws. These Terms do not grant you any

rights to WPT’s intellectual property beyond the limited right to use the Service as intended.

10. Disclaimers

The Service is provided “as is” and “as available,” without warranties of any kind, express or implied, including but not limited to fitness for a particular purpose, merchantability, or non-infringement. WPT does not guarantee uninterrupted or error-free operation, particularly given the Service’s reliance on free-tier infrastructure during its initial phase.

11. Limitation of Liability

To the maximum extent permitted by law, WPT shall not be liable for any indirect, incidental, special, consequential, or punitive damages arising from your use of the Service.

Flag for legal review: liability caps and exclusions vary significantly by jurisdiction — this section requires jurisdiction-specific tailoring, particularly for the EU and California.

12. Governing Law

Placeholder — governing law and dispute resolution jurisdiction to be determined with legal counsel, based on WPT’s country of incorporation and target markets.

13. Changes to These Terms

We may update these Terms from time to time. Material changes will be notified in-app before taking effect. Continued use of the Service after changes take effect constitutes acceptance.

14. Contact

Placeholder — insert WPT’s legal/support contact details once established.

PART B — PRIVACY POLICY

1. Introduction

This Privacy Policy explains what data White Pixel Technologies (“WPT”) collects through [App Name], why, and what rights you have over it. We’ve designed the Service around collecting as little as possible, consistent with its end-to-end encrypted design.

2. Data We Collect

- **Phone number** — required for account creation and identification.
- **Profile information** — name (required), profile photo (optional), about/status text (has a default value, editable).
- **Contact list matching** — if you grant Contacts permission, your phone contacts are checked against our registered user database, using cryptographic hashing rather than uploading your raw contact list. Because phone numbers have a limited range of possible values, hashing provides strong but not absolute protection — it is a widely used, industry-standard technique for privacy-preserving contact discovery, though it does not offer the same guarantees as more advanced (and more resource-intensive) approaches some larger providers use. We consider this the right balance for the Service at its current stage and will revisit stronger techniques as the Service grows. (*updated in v1.1*)
- **Device and technical data** — device type, OS version, app version, and connection metadata necessary for message delivery and troubleshooting.
- **Message metadata** — timestamps, sender/recipient identifiers, and delivery status, necessary to route encrypted messages. This does not include message content.
- **Reported content** — only when you submit a report (see Terms Section 7), and only from your own device’s already-decrypted view.

3. Data We Do Not Collect

- **Message content** — text, voice notes, photos, videos, and documents are end-to-end encrypted using the Signal Protocol. WPT cannot read this content in normal operation.
- We do not retain message or media content on our servers beyond active delivery (immediate deletion on delivery; 30-day maximum for undelivered messages).
- We do not use message content for advertising, profiling, or any automated analysis, because we cannot access it.

4. How We Use Data

- To provide and operate the Service (account creation, message routing, contact discovery).
- To maintain security (e.g., detecting and preventing abuse, enforcing the reporting/enforcement process in Section 7 of the Terms).

- To communicate with you about your account (e.g., OTP codes, security notices such as new-device login alerts).
- We do not sell your personal data to third parties, and we do not use your data for third-party advertising.

5. Legal Bases for Processing (where applicable, e.g., under GDPR)

- **Contractual necessity** — processing your phone number and account data to provide the Service you’ve signed up for.
- **Legitimate interest** — security, fraud prevention, and abuse reporting.
- **Consent** — where required, e.g., for optional permissions like Contacts, Notifications, Microphone, Camera, and Photos/Files access, all of which can be declined or revoked at any time.

6. Data Sharing

- We do not sell personal data.
- Reported content (Section 7 of the Terms) is accessible only to WPT’s internal review process.
- We may disclose data if legally compelled by a valid law enforcement request, to the extent we hold any relevant data (which, for message content, is limited to voluntarily reported content already described above).

7. Data Retention

Data type	Retention
Message/media content (server-side)	Deleted immediately on successful delivery; max 30 days if undelivered
Reported content (evidence)	Up to 30 days from submission, then deleted
Account/profile data	Until account deletion
Deleted account — number reuse	48-hour cooldown before the same number can register a new account
Local device backup (optional)	Stored at your own discretion, outside WPT’s control; password-protected with no recovery if forgotten

8. Your Rights

Depending on your jurisdiction, you may have rights including:

- **Access** — request a copy of the personal data we hold about you.
- **Rectification** — correct inaccurate profile data directly in-app.
- **Erasure** — delete your account and associated data at any time via the app. Once deleted, this is permanent and cannot be recovered by WPT.
- **Portability** — export your local message history via the in-app encrypted backup feature.

- **Objection/restriction** — object to certain processing, e.g., by declining optional permissions.
- **Non-discrimination** (California residents, CCPA/CPRA) — we will not deny you service for exercising your privacy rights.

Flag for legal review: specific mechanisms for exercising these rights — e.g., a formal request process, response timelines — need to be defined per applicable law: GDPR Articles 15–22, India’s DPDP Act 2023, CCPA/CPRA, and others as WPT’s user base grows.

9. International Data Transfers

As a global service using managed free-tier infrastructure providers, your data may be processed in countries other than your own.

Flag for legal review: this requires confirming the actual data-hosting regions of whichever free-tier providers are selected in the architecture doc, and appropriate transfer safeguards, e.g., GDPR Standard Contractual Clauses if EU user data is involved.

10. Children’s Privacy

The Service is not directed at children under 16. We do not knowingly collect data from children under this age. See Terms Section 2 regarding eligibility.

11. Security

We use the Signal Protocol to provide end-to-end encryption for message content. Encryption keys are generated and stored on your device (and, for Web, in your browser client) — WPT does not hold your private keys.

12. Web Client Data

The Web client does not use advertising trackers or third-party analytics cookies. Only data strictly necessary for the Service to function (session/link state) is stored locally in your browser.

Your encryption keys for the Web client are generated and stored locally in your browser rather than in dedicated secure hardware (unlike our mobile apps, which use your device’s built-in secure hardware where available). This is standard practice among browser-based encrypted messaging clients. We recommend keeping your browser and operating system up to date and avoiding use on shared or public computers. *(added in v1.1)*

13. Changes to This Policy

We may update this Privacy Policy from time to time. Material changes will be notified in-app before taking effect.

14. Contact

Placeholder — insert WPT's privacy/data protection contact details once established. Under GDPR, a Data Protection Officer or equivalent contact point may be required depending on processing scale.

End of Draft v1.1

Recommended next step: legal review covering (1) the age-eligibility threshold, (2) governing law/jurisdiction, (3) liability limitations by region, (4) data subject rights mechanisms, and (5) international transfer safeguards, before this is linked anywhere in-app.